



CHAPTER 91.

An Act to secure the better training of Midwives in Scotland, and to regulate their practice.

[23rd December 1915.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) From and after the first day of January one thousand nine hundred and seventeen any woman who, not being certified under this Act, shall take or use the name or title of midwife (either alone or in combination with any other word or words), or any name, title, addition, or description implying that she is certified under this Act, or is a person specially qualified to practise midwifery, or is recognised by law as a midwife, shall be liable on summary conviction to a fine not exceeding five pounds. Certification.

(2) From and after the first day of January one thousand nine hundred and twenty-two no woman shall habitually and for gain attend women in child-birth otherwise than under the direction of a registered medical practitioner unless she be certified under this Act; any woman so acting without being certified under this Act shall be liable on summary conviction to a fine not exceeding ten pounds: Provided this subsection shall not apply to registered medical practitioners or to anyone rendering assistance in a case of emergency.

(3) No woman shall be certified under this Act until she has complied with the rules and regulations to be laid down in pursuance of this Act.

(4) No woman certified under this Act shall employ an uncertified person as her substitute.

(5) The certificate under this Act shall not confer upon any woman any right or title to be registered under the Medical Acts or to assume any name, title, or designation implying that she is by law recognised as a medical practitioner, or that she is authorised to grant any medical certificate, or any certificate of

A.D. 1915. death or of still-birth, or to undertake the charge of cases of abnormality or disease in connection with parturition, but nothing herein contained shall prevent a midwife granting such certificates as may be required by the rules of approved societies or insurance committees in connection with maternity benefit under the National Insurance Acts.

Provision for
existing mid-
wives,

2. Any woman who, within two years from the date of this Act coming into operation, claims to be certified under this Act, shall be so certified, provided she holds a certificate in midwifery from the Royal Maternity Hospital of Edinburgh, the Royal Maternity Hospital, Glasgow, the Maternity Hospital, Aberdeen, the Maternity Hospital, Dundee, the Obstetrical Society of London, the Royal College of Physicians of Ireland, the Coombe Lying-in Hospital, and Guinness's Dispensary, the Rotunda Hospital for the Relief of Poor Lying-in Women of Dublin, the National Maternity Hospital, Dublin, the Central Midwives Board for England, or such other certificate as may be approved by the Central Midwives Board for Scotland, or produces evidence satisfactory to the last-mentioned Board, that at the passing of this Act she had been for at least one year in bonâ fide practice as a midwife, and that she bears a good character.

The period of two years may be extended by the Central Midwives Board for Scotland in special cases where any woman is able to satisfy them that she had reasonable excuse for having failed to make her claim within the prescribed time.

Constitution
of the Central
Midwives
Board for
Scotland.

3. On the passing of this Act the Lord President of the Council shall take steps to secure the formation of a Central Midwives Board for Scotland (hereafter in this Act termed the Board), which shall consist of—

- (1) Three persons to be appointed by the Lord President of the Council, two of whom shall be certified midwives practising in Scotland, and shall be first appointed when, in the opinion of the said Lord President, midwives so qualified are available in number sufficient to warrant such appointment; and
- (2) Four persons to be appointed, one by the Association of County Councils for Scotland, one by the Convention of the Royal Burghs of Scotland, one by the Queen Victoria Jubilee Institute for Nurses (Scottish Branch), and one by the Society of Medical Officers of Health of Scotland; and
- (3) Five registered medical practitioners to be appointed, one by the University Courts of the Universities of Edinburgh and St. Andrews, conjointly, one by the University Courts of the Universities of Glasgow and Aberdeen, conjointly, one by the Royal College of Physicians of Edinburgh, the Royal College of Surgeons of Edinburgh, and the Royal Faculty of Physicians and Surgeons of Glasgow, conjointly, and two by the Scottish Committee of the British Medical Association.

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On the first day of February one thousand nine hundred and twenty-one, and on the first day of February in every fifth year thereafter, all the members of the Board shall retire from office together, but shall be eligible for re-appointment, and their places shall be filled by the appointment, by the same person and bodies respectively, of a like number of members possessing, where any qualification is prescribed, the same qualifications as aforesaid.

Any vacancy occurring by death or resignation or any cause other than retirement in ordinary course shall be filled by a member appointed by the person or body by whom the member whose office is vacated was appointed, and possessing, where any qualification is prescribed, the same qualification.

The Board may act notwithstanding a vacancy or vacancies in their number.

The Board shall elect a chairman from their own number.

The meetings of the Board shall be held in the city of Edinburgh, and the members shall be paid in respect of their attendance thereat reasonable expenses on a scale approved by the Privy Council.

4.—(1) The Board may at any time represent to the Privy Council that it is expedient to modify the constitution of the Board either by—

Future revision of constitution of the Board.

- (a) increasing or diminishing the number of persons appointed by any body or person; or
- (b) abolishing the power of appointment by any body or person; or
- (c) conferring on any body or person a power of appointment of one or more persons; or
- (d) altering the term of office or qualifications of any members.

(2) The Privy Council before considering such representation shall cause it to be laid before both Houses of Parliament.

(3) If either House of Parliament within forty days (exclusive of any period of adjournment for more than one week) next after such representation has been laid before the House presents an address to His Majesty declaring that the representation or any part thereof ought not to be given effect to, no further proceedings shall be taken in respect of the representation or part thereof in regard to which the address has been presented; but if no such address is presented by either House within such forty days as aforesaid, or if an address relating only to some part of such representation be so presented, the Privy Council may, if they think fit, report to His Majesty that it is expedient to give effect to the representation or to any other part thereof as the case may be; and it shall be lawful for His Majesty by Order in Council to give effect to the same, and any Order in Council so made shall have effect as if enacted in this Act.

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Duties and
powers of
the Board.

5. The duties and powers of the Board shall be as follows:—

(1) To frame rules—

- (a) regulating their own proceedings;
- (b) regulating the issue of certificates and the conditions of admission to the roll of midwives;
- (c) regulating the course of training and the conduct of examinations (which shall, so far as possible, be of a practical character) and the remuneration of the examiners;
- (d) regulating the admission to the roll of women already in practice as midwives at the passing of this Act;
- (e) regulating, supervising, and restricting within due limits the practice of midwives, and defining the emergencies in which a midwife shall call in a registered medical practitioner to her assistance;
- (f) defining the conditions under which midwives may be suspended from practice;
- (g) defining the particulars required to be given in any notice under section eighteen of this Act;

(2) To appoint examiners, one of whom shall be a registered female medical practitioner and none of whom shall be a member of the Board;

(3) To decide upon the places where, and the times when, examinations shall be held;

(4) To publish annually a roll of midwives who have been duly certified under this Act;

(5) To decide upon the removal from the roll of the name of any midwife for disobeying the rules and regulations from time to time laid down under this Act by the Board, or for other misconduct, and also to decide upon the restoration to the roll of the name of any midwife so removed;

(6) To issue and cancel certificates;

and generally to do any other act or duty which may be necessary for the due and proper carrying out of the provisions of this Act.

Rules framed under this section shall be communicated to the General Medical Council, and shall be valid only if approved by the Privy Council; and the Privy Council, before approving any such rules, shall take into consideration any representations which the General Medical Council may make with respect thereto. The General Medical Council may for the purposes of this section act through their executive committee.

Provisions as
to suspensions.

6.—(1) The power of the Board to frame rules defining the conditions under which midwives may be suspended from practice shall include a power of framing rules—

- (a) authorising the Board to suspend a midwife from practice in lieu of removing her name from the roll, and to

suspend from practice until the case has been decided, and (in the case of an appeal) until the appeal has been decided, any midwife accused before the Board of disobeying rules or regulations or of other misconduct; A.D. 1915.

- (b) authorising the local supervising authority to suspend from practice until the case has been decided any midwife against whom a prosecution has been taken for a contravention of any of the provisions of this Act.

(2) Where in pursuance of any power conferred by any such rule a midwife has been suspended from practice pending the decision of her case by a court or the Board and the case is decided in her favour, or where in pursuance of the duty imposed by paragraph (3) of section sixteen of this Act a midwife has been suspended from practice in order to prevent the spread of infection, the Board or the local supervising authority by whom she was suspended may, if they think fit, pay her such reasonable compensation for loss of practice as under the circumstances may seem just.

7.—(1) The Board may, if they think fit, pay all or any part of the expenses incurred by any midwife who may be required to appear before them in her own defence, and all forms required to be filled up and returned to the Board shall be supplied gratis by the Board to certified midwives. Expense of midwives.

(2) All other forms and books which certified midwives are required to fill up or use shall be supplied to them gratis by the local supervising authority.

(3) Where any such form is required to be returned by post to the Board or the authority either the form shall be supplied duly stamped or a duly stamped envelope shall be supplied with the form.

8. Where the Board decide upon the removal from the roll of the name of any midwife, they may, in addition, prohibit her from attending women in child-birth in any other capacity, but such decision of the Board shall be subject to the like appeal as their decision to remove her name from the roll, and, if any woman so prohibited acts in contravention of the prohibition, she shall be liable on summary conviction to a fine not exceeding ten pounds. Offences by midwives.

9. Any woman whose name is ordered to be removed from the roll for disobeying rules or regulations, or for other misconduct, shall, within fourteen days from the notification to her of the order, surrender her certificate to the Board, and, if she fails to do so, shall be liable on summary conviction to a fine not exceeding five pounds. Return of certificate.

10. Where the name of a woman has been removed from the roll of midwives, the Board shall forthwith give notice of the fact to all local supervising authorities concerned. Notification to local supervising authorities of removal of names from roll.

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Reciprocal
treatment of
midwives cer-
tified in other
parts of His
Majesty's
dominions.

11.—(1) Any woman who produces evidence satisfactory to the Board that she has been trained as a midwife and certified in any other part of His Majesty's dominions in which there is for the time being in force any Act or ordinance for the certification and registration of midwives under a public authority, and which admits to its register midwives certified under this Act on reciprocal terms, shall, on payment of the like fee as is payable in ordinary cases, be entitled to be certified under this Act: Provided that the standard of training and examination required in such other part of His Majesty's dominions is in the opinion of the Board equivalent to the standard adopted by the Board.

(2) If any question arises under this section as to the right of a woman to be certified under this Act, the question shall be determined by the Privy Council.

Appeal from
decision of the
Board.

12. Any woman thinking herself aggrieved by any decision of the Board removing her name from the roll of midwives may appeal therefrom to either division of the Court of Session within three months after the notification of such decision to her; but no further appeal shall be allowed.

Fees and
expenses.

13. There shall be payable by every woman presenting herself for examination or certificate such fee as the Board may, with the approval of the Privy Council, from time to time determine, such fee not to exceed the sum of one guinea. All such fees paid by midwives in practice at the passing of this Act and by candidates for examination shall be paid to the Board. The Board shall devote such fees to the payment of expenses connected with the examination and certificate and to the general expenses of the Board. The Board shall, as soon as practicable after the thirty-first day of December in each year, publish a financial statement made up to that date, and showing the receipts and expenditure, including liabilities, of the Board, during the year, which statement shall be certified as correct by an accountant practising in Scotland to be appointed annually by the Secretary for Scotland. The Board shall submit a copy of such statement to the Privy Council, and, if the statement shows any balance against the Board and such balance is approved by the Privy Council, whose approval shall be binding and conclusive as to the amount of the balance to be apportioned, the Board may apportion such balance between the local supervising authorities in proportion to the populations of their districts as ascertained at the last preceding census. The Board may issue precepts to the local supervising authorities for the amounts so respectively apportioned to them. The local supervising authorities shall within six months after the receipt of such precepts, or such longer period as may be agreed with the Board, pay to the Board the amounts so payable by them respectively.

14. There shall be a roll of midwives containing—

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- (1) The names of those midwives who have been certified under section two of this Act;
- (2) The names of all other midwives who have been certified under this Act.

Midwives roll.

The entry on the roll shall in every case indicate the conditions in virtue of which the certificate was granted.

15. The Board shall, with the previous sanction of the Privy Council, appoint a secretary and such other officers as may be required, and every person so appointed shall be paid such salary as the Privy Council may approve, and shall be removable at the pleasure of the Board. The secretary, acting under the instructions of the Board, shall be charged with the preparation, correction, and custody of the roll.

Appointment of secretary and supplemental provision as to certificate.

A copy of the roll of midwives purporting to be printed by the authority of the Board or to be signed by the secretary of the Board, or other person authorised by the Board to sign on his behalf, shall be evidence in all courts that the women therein specified are certified under this Act; and the absence of the name of any woman from such copy shall be evidence until the contrary be made to appear that such woman is not certified under this Act: Provided always that, in the case of any woman whose name does not appear in such copy, a certificate under the hand of the secretary, or other person authorised as aforesaid, of the entry of the name of such woman on the roll shall be evidence that such woman is certified under this Act.

A certificate purporting to be signed by the secretary, or other person authorised as aforesaid, that the name of a woman whose name appears in the roll of midwives has been removed from the roll and of the date of such removal shall be evidence that such woman is not certified under this Act and of the date as from which she ceased to be so certified.

16. The local authority of every district, in which this Act is operative, shall be the local supervising authority over midwives within such district. It shall be the duty of the local supervising authority, by themselves, or by their medical officer acting under their instruction—

Local supervision of midwives.

- (1) to exercise general supervision over all midwives practising within their district in accordance with the rules to be laid down under this Act;
- (2) to investigate charges of malpractice, negligence, or misconduct, on the part of any midwife practising within their district, and, should a *prima facie* case be established, to report the same to the Board;
- (3) to suspend any midwife from practice, in accordance with the rules under this Act, if such suspension appears necessary in order to prevent the spread of infection;

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- (4) to report at once to the Board the name of any midwife practising in their district convicted of an offence under this Act;
- (5) To report at once to the Board the death of any midwife or any change in the name and address of any midwife in their district, so that the necessary alteration may be made in the roll;
- (6) to supply to the secretary of the Board, during the month of January of each year, the names and addresses of all midwives who during the preceding year have notified their intention to practise within their district, and to keep a current copy of the roll of midwives, accessible at all reasonable times for public inspection;
- (7) to give due notice of the effect of the Act, so far as practicable, to persons at the commencement of this Act using the title of midwife, within their district.

The local supervising authority may delegate, with or without any instructions or conditions as they may think fit, any powers or duties conferred or imposed upon them by or in pursuance of this Act, to a committee appointed by them, and consisting, either wholly or to the extent of two-thirds or more, of members of the authority, and women shall be eligible to serve on any such committees.

Powers of
entry.

17. For the purpose of exercising the powers of supervision over midwives conferred on local supervising authorities, any officer appointed by such an authority for the purpose may at all reasonable times enter any premises which he has reason to believe to be a lying-in home conducted for profit within the district of the authority, and in which he has reason to believe that a certified midwife is employed or practises, or that a woman not a certified midwife practices in contravention of this Act, and any person who wilfully obstructs any such officer in the performance of his duties, shall, on summary conviction, be liable to a fine not exceeding five pounds.

Notification of
practice.

18.—(1) Every woman certified under this Act shall, before holding herself out as a practising midwife or commencing to practise as a midwife in any district, give notice in writing of her intention so to do and of the address at which she resides to the local supervising authority, and shall give a like notice in the month of January in every year thereafter during which she continues to practise in such district.

Such notice shall be given to the local supervising authority of the district within which such woman usually resides or carries on her practice, and the like notice shall be given to every other local supervising authority within whose district such woman at any time practises or acts as a midwife, within forty-eight hours at the latest after she commences so to practise or act.

Every such notice shall contain such particulars as may be required by the rules under this Act to secure the identification

of the person giving it; and if any woman omits to give the said notices or any of them, or knowingly or wilfully makes or causes or procures any other person to make any false statement in any such notice, she shall, on summary conviction, be liable to a fine not exceeding five pounds. A.D, 1915.

(2) Where a woman certified under this Act has given a notice in compliance with subsection (1) of this section and subsequently changes her address, she shall, within three days after such change, give notice of the change to every local supervising authority concerned, and, if she omits to do so, shall, on summary conviction, be liable to a fine not exceeding five pounds.

19. Any woman who procures or attempts to procure a certificate under this Act by making or producing, or causing to be made or produced, any false and fraudulent declaration, certificate, or representation, either in writing or otherwise, shall be guilty of a crime and offence, and shall, on conviction thereof, be liable to be imprisoned, with or without hard labour, for any term not exceeding twelve months. Penalty for obtaining a certificate by false representation.

20. Any person wilfully making or causing to be made any falsification in any matter relating to the roll of midwives shall be guilty of a crime and offence, and shall be liable to be imprisoned, with or without hard labour, for any term not exceeding twelve months. Penalty for wilful falsification of the roll.

21. Local supervising authorities are hereby authorised to contribute towards the training of midwives within or without their respective areas in such manner and to such extent as may be approved by the Local Government Board for Scotland. Supervising authority may contribute towards training.

22.—(1) In case of an emergency, as defined in the rules framed under section five (1) (e) of this Act, a midwife shall call in to her assistance a registered medical practitioner, and the local supervising authority shall pay to such medical practitioner a sufficient fee, with due allowance for mileage, according to a scale to be fixed by the Local Government Board for Scotland, and such fee shall cover one subsequent visit. Medical assistance in case of emergency.

(2) It shall be a condition of the payment of such fee that the medical practitioner so called in shall state in his claim to the local supervising authority the nature of the emergency.

(3) The midwife shall report forthwith to the local supervising authority each case of emergency in which she has called in a registered medical practitioner to her assistance, stating the nature of the emergency and the name of the medical practitioner.

(4) The local supervising authority shall have power to recover the fee from the husband or guardian of the patient as an alimentary debt, unless it be shown to their satisfaction that

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Annual report of local supervising medical officer.

23. The medical officer of every local supervising authority shall report annually to that authority on the administration of the Act within the district of the local authority, and he shall transmit a copy of such report to the Board and to the Local Government Board for Scotland.

Annual report of the Board.

24. The Board shall present to the Privy Council a report of their proceedings during each year within three months of the termination of the year containing such particulars as the Privy Council may direct.

Expenses of local supervising authority.

25. Any expenses under this Act payable by the local supervising authority shall be defrayed out of the public health general assessment.

Act not to apply to medical practitioners.

26. Nothing in this Act respecting midwives shall apply to registered medical practitioners.

Application.

27. This Act shall apply to all districts in Scotland, excepting such districts as the Local Government Board for Scotland may, by order (which they are hereby empowered to make), exclude from the operation of the Act.

Definitions.

28. In this Act—

The term “midwife” means a woman who is certified under this Act unless the context otherwise requires:

“Local authority” and “district” shall have the same meanings as in the Public Health (Scotland) Act, 1897.

60 & 61 Vict. c. 38.

Short title, extent, and commencement.

29. This Act may be cited as the Midwives (Scotland) Act, 1915, and shall apply to Scotland only. It shall, except as otherwise provided by this Act, come into operation on the first day of January one thousand nine hundred and sixteen.

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FOR

FREDERICK ATTERBURY, Esq., C.B., the King's Printer of Acts of Parliament.